

compel the parent to give the legacy; the Court can only mean a moral obligation, a laudable affection which may exist in *others* besides a *parent*" (*l*).

3. **How persons constituted loco parentis.** — By what acts a person will place himself *loco parentis* is a question upon which parol evidence is admissible (*m*), and is often in practice a question of extreme difficulty (*n*). According to Sir W. Grant, "A person *loco parentis* is one who assumes the parental character or discharges parental duties" (*o*). Sir L. Shadwell said, "The legal sense of the term is that the party has so acted towards the children, as that he has thereby imposed upon himself a moral obligation to provide for them" (*p*); and Lord Eldon speaks of him

* as "a person meaning to put himself *loco parentis*, [*403] in the situation of the person described as the lawful father of the child" (*a*); and Lord Cottenham attached great force in this description to the word "meaning," as referring to the *intention* rather than the *act* of the party (*b*), and added, that the definition was to be considered as applicable not to all the parental offices and duties (for they were infinitely various) but to such offices and duties as related to the making provision for a child (*c*). If a person has contributed to the maintenance of a female relative from the time of her father's death, and has been treated as one whose consent was necessary upon her marriage, and has taken upon himself the obligation of making a provision for her upon marriage, he must under such circumstances be regarded as having placed himself *loco parentis* (*d*).

4. **Presumption.** — Ademption and Satisfaction are both *Presumptions* only — that is, where there is no intrinsic evidence one way or another, the Court *presumes* that double portions were not meant. But if the Court collects from

(*l*) *Powel v. Cleaver*, 2 B. C. C. 516.

(*m*) *Powys v. Mansfield*, 6 Sim. 528; 3 M. & Cr. 359.

(*n*) See *Fowkes v. Pascoe*, 10 L. R. Ch. App. 350.

(*o*) *Wetherby v. Dixon*, 19 Ves. 412.

(*p*) *Powys v. Mansfield*, 6 Sim. 556.

(*a*) *Ex parte Pye*, 18 Ves. 154.

(*b*) *Powys v. Mansfield*, 3 M. & Cr. 367.

(*c*) *Ib.*

(*d*) *Booker v. Allen*, 2 R. & M.

270; *Pym v. Lockyer*, 5 M. & Cr. 29.